CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
March 24, 2010
7:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:00 p.m. on Wednesday, March 24, 2010 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Dorothy Johnson, Vice Mayor Myra L. Taylor, Commissioner Rose Tydus, Commissioner Timothy Holmes and Mayor Joseph L. Kelley. Also in attendance were: City Manager Clarance Patterson, Interim City Attorney Joseph S. Geller and City Clerk Deborah S. Irby.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Manager Patterson requested to pull agenda item 15-3 off the consent agenda to be considered separately for discussion purposes.

Commissioner Johnson pulled agenda item 15-2 and 15-3 from the consent agenda.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus Yes

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

8. APPROVAL OF MINUTES:

Special Commission Meeting – March 01, 2010
Regular Commission Meeting – March 10, 2010

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the minutes of the Special Commission Meeting of March 01, 2010 and Regular Commission Meeting of March 10, 2010.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

9. DISTRICT ONE – COUNTY COMMISSIONER REPORT:

Larry Gardner, Community Liaison for Miami-Dade County Commissioner Barbara Jordan, District 1, came forward and provided an update on the technical support previously requested by Commissioner Johnson.

For clarification purposes, Commissioner Johnson said she previously requested a technical support team from Miami-Dade County for Human Resources and Procurement of which she would put in writing. In addition to that, she asked the acting City Manager to send a letter to the Commissioner Jordan requesting several buses from transit for the seniors and she would like a follow up on this request.

10. PUBLIC PRESENTATION:

1. Terence K. Pinder
   re: welfare of the city

Terence Pinder of 941 Ali-baba Avenue, Opa-locka, Florida, came forward and spoke about getting started with the youth summer jobs.

He commended the City Clerk for doing a great job with the census. He continued by expressing the importance of the census and having an accurate count which would lead to dollars for the community.

Mayor Kelley advised Mr. Pinder that the city was already on the youth summer employment program.

2. Steven Barrett
re; welfare of the city

Steven Barrett of 633 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission and voiced his concerns relating to the request at the last commission meeting for a school near NW 135th Street.

Commissioner Johnson stated that she had received messages from citizens and the city must be cautious to make sure they are not draining the two current schools in the area because of the low enrollment at both.

10a. CITIZENS' FORUM:

1. Christopher Hinds of 561 Sharar Avenue, Opa-locka, Florida, and Jerrod Vaughn of 2094 Wilmington Avenue, Opa-locka, Florida, came forward and expressed their concerns relating to the Opa-locka Labor Workforce Program under Mr. Banks. After expressing the concerns to Mr. Lee and Mr. Spanner of the city's Community Development Department he was told that Mr. Banks was the contractor for that program.

Mayor Kelley clarified that Mr. Hinds was hired through the program initiated by the Commission and was compensated for that work; however, he has no idea about the other concerns mentioned relating to Mr. Banks. After speaking with Mr. Hinds regarding this matter, he said he brought the issue to the City Manager's attention to look into and report back to the Commission. The program this Commission initiated was to hire city residents to board-up; cut, etc. foreclosed and abandoned properties. The component added was to paint the properties. He stated for the record that it was suppose to be city residents of which they had a listing and based on the qualifications the city would hire those individuals.

He directed the City Manager to get to the bottom of this matter and report back to the Commission as soon as possible.

Commissioner Holmes echoed Mayor Kelley's comments; however, Mr. Hinds commented on Mr. Banks having a contract. He directed the City Manager to look into whether Mr. Banks has a contract, and if he does, then those workers would fall under that contract.

Commissioner Johnson stated that she too had met with Mr. Hinds and on September 2009 this Commission adopted a resolution that the City Manager cannot enter into any contracts unless it is approved by them. She said she was shocked to hear the process that took place which is not a normal process for hiring and it needs to cease because what she is hearing is that some of the city's employees are also engaged in this issue.

Mayor Kelley directed the City Manager to follow up on this matter as soon as possible and deal with the issue.

2. Michael Cox of Biscayne Housing Group, 150 SE 2nd Avenue, Suite 1302 Miami, Florida, Denise Mincey Mills of the Carrie Meek Foundation and Iris Escarra of Greenburg Traurig, LLP appeared before the City Commission regarding the site plan approval of an affordable housing development at 13280 Port Said Road named the Georgia Ayers Apartments which is a joint venture between the Carrie Meek Foundation, Biscayne Housing Group and the land which is being leased is owned by the Alternative Program under Georgia Ayers. The concept is that the development is funded through Commissioner Jordan's 7.5 Million in GOB funds from Miami-Dade County to build 72 units of affordable housing and generate income for the Alternative Program. He further provided an overview of the project which included the criteria for tenants.

Mr. Cox requested assistance from the city to work with the state to wrap up procedural zoning issues.

Commissioner Johnson asked whether the representatives met with the City Manager prior to coming before the Commission?

Mr. Cox advised that he met with both the former City Manager and the current City Manager.

Commissioner Johnson recalled an issue with the South Florida Regional Planning Council and the applicant needing approval by April 2010.

Mr. Cox advised that he needs to pull the permits by June 2010 and the plans are complete and ready to go into the department. The issue is so complicated about the zoning and there are procedural items to be completed in order to move ahead and start construction on the project.

Vice Mayor Taylor asked, has this item had gone before the Planning Council. If so, what was the outcome?

Mrs. Escarra advised that they appeared before the Planning Council in January and the item was deferred because of the changes that needed to be made to the Comprehensive Master Plan which have not been adopted. The Planning Council could not recommend approval because it's inconsistent with the comp plan. First the state issues have to be fixed, then go back to the city's approval process; however, they have run short on time. Therefore, she is asking direction from the Commission to have the state, city, everybody to put their efforts in so that they don't lose their money in June.

Of concern to Vice Mayor Taylor was the fact that the unit went from a 26 unit to a 72 unit complex in an area where the street is small and the density in that area is already maxed out. She said she was surprised the Planning Council deferred this item since they already have several large apartment buildings in that same area.

She continued by saying that she didn't object to the project, but she objects to the project being in that particular location.

After hearing the concern, Mr. Cox said they were asking for the same density as the Aswan Village project which is the exact same density. Before getting into the project, a traffic consultant was hired to study the traffic and whether this project would overload the roadway; however, there was a favorable report and based on that they moved forward.

Commissioner Johnson said she was under the impression that the concern was that the city's EAR at the time had not been approved and the city was waiting on that approval. Therefore, it's the city's documentation and it was the approval from the South Florida Regional Planning Council that had not taken place and the applicants had to have that approval so the documentation can go to the state.

Mrs. Escarra stated that the city's EAR was approved and the next step is for the city to implement the policies adopted in the EAR into the Comprehensive Plan which is the purpose as to why FIU was hired. This is the step missing in order for them to move forward and come to the city with the project.

Commissioner Johnson asked Attorney Geller that if the city is aware of all this information then why hadn't something been done or forwarded?

Attorney Geller informed the Commission that he was going to report on this issue at greater lengths.

Commissioner Holmes expressed his concerns relating to the many apartments already on Port Said Road and the impact it would cause to add another 72 unit complex on that road. The apartment owners on Port Said Road should get together to come up with a plan to improve that area.

Commissioner Tydus said that area had been a bone of contention with her because of the density and traffic problem due to there only being one way in and one way out. The city has nothing to gain by this project but compounded headaches; therefore, until something is done about the existing problems in that area she is not in favor of this development in that area.

Mrs. Escarra offered to have their traffic engineer work with someone in the city to come up with possible solutions to help litigate that traffic.

Mayor Kelley stated that everyone is aware of the fact that a several years ago he was looking at that area for a park and that just seems to be the right location for a park. Since the Commission had not received anything from the City Manager in terms of his recommendation, he suggested that they wait to get a recommendation and/or comments from the City Manager before going forth with this item. Additionally, he suggested that the applicants work with the City Manager even if it's identifying another area to make the project happen.

He directed the City Manager to bring back a recommendation to the Commission along with any reports or comments the City Attorney may have regarding this issue before a decision is made.

Mrs. Escarra requested to commence the proceedings with the state because they would have to come before the Commission with the project anyway due to the time limitations.

Mayor Kelley advised Mrs. Escarra that the Commission would not vote on something and not having heard the recommendation from the City Manager.

3. Steven Barrett of 633 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission and expressed his concerns about the new school and the development that just came up and the lack of dialogue in terms of property owners / community participation in those specific areas.

He continued by saying that Roadrunner, a resident of Opa-locka, has the landscaping business for the city and the majority of people he hires live in this community giving them an opportunity to make a living. After hearing individuals running to Help Me Howard he made a comparison to My Lawn Service and not one individual they hired were from Opa-locka.

4. John Riley of 2963 NW 135th Street, Opa-locka, Florida, came forward and stated that he was glad to hear the city is in the process of doing the comprehensive plan. In 1985, the city did its first comprehensive plan and in that plan is where the Commission at that time set the policy where as it would allow schools, churches and daycare centers in those non zoned areas which did not prohibit any project going before the Planning Council; it strictly dealt with the zoning. He said he would hope that area would be addressed in the city's new comprehensive plan because it is the municipality that would handle what goes in what area. Secondly, in 1996 the property being discussed on Port Said Road was owned by the City of Opa-locka. He inquired as to how the city no longer owned that property?

Over one year ago when he inquired about the land, Mayor Kelley said that staff at that time stated that the city did not own the property, and when they did their due diligence it was owned by the Alternative Program. However, he has no idea in terms of how that process got from the city owning the property to someone else, but that is something that can be researched, but at this moment he doesn't know.

Mr. Riley stated that he is aware of the fact that the current person does own the property; but his concern is how they got the property.

Mayor Kelley explained that he doesn't know how the current owner obtained the property but that is something they could ask the City Attorney to research.

Vice Mayor Taylor agreed that she too thought the city had owned the property and perhaps the Commission can get some history on the property from staff.

Mayor Kelley directed the City Manager and City Attorney to provide the Commission with a written report as to the history of the parcel of land in question.

Attorney Geller stated that is was his understanding the parcel was acquired by Mrs. Ayers and the foundation and it is now in an agreement with the Carrie Meek Foundation

from the county. However, he would research as to how the county got the parcel if it was city property and will have that answer to the Commission.

11. ACTION ITEMS (items from consent agenda pull list):

15-2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ACCEPT THE MAINTENANCE REIMBURSEMENT MEMORANDUM OF AGREEMENT BETWEEN THE STATE OF FLORIDA DEPARTMENT OF TRANSPORTATION (FDOT) AND THE CITY OF OPA-LOCKA FOR THE PRESERVATION OF THE AREAS OUTSIDE OF THE SOUTH FLORIDA RAILROAD TRACKS WHICH ARE WITHIN BOUNDARIES OF THE CITY OF OPA-LOCKA; FURTHER AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE SAID REIMBURSEMENT AGREEMENT, IN AN AMOUNT NOT TO EXCEED THIRTY THOUSAND DOLLARS ($30,000.00), PAYABLE FROM ACCOUNT NUMBER 41-541340; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

For clarification purposes, Commissioner Johnson asked, does this mean the city would perform maintenance on FDOT property and submitting invoices for reimbursement?

Manager Patterson explained that Commissioner Johnson was correct in that maintenance would be done along the tracks.

Commissioner Johnson stated for the record that the city doesn't just arbitrarily give the maintenance to someone because there is a process to be adhered to and she didn't see that in any of the correspondence relating to this resolution.

Manager Patterson advised that FDOT owns the property and the city is entering into a contract with them to keep that property clean.

Commissioner Johnson asked, who would perform the actual work to maintain the property?

Manager Patterson stated that the city has the responsibility to keep the property clean and this is not a contract between the city, railroad and somebody else.

As this resolution is approved, Commissioner Johnson made it clear that this was not for the city to choose a vendor other than the current methods which are the Urban Rangers, the inmates and/or the city's landscaping vendor. As of November 9, 2009, the City Manager cannot enter into any agreements without the approval of the Commission.

She clarified that adoption of this resolution was not for the city to go out and pick a vendor to complete the maintenance of the property.

She further stated that she wanted to know who will be completing the maintenance on the property.

Manager Patterson stated that if the work was to be contracted out then it would be brought back to the Commission; however, if the city can do it with the current workforce then they will do it in-house.

Vice Mayor Taylor expressed her concerns about the railroad tracks being in bad condition and need repairs. She directed the City Manager to get with CSX about the repairs because in other cities there's a smooth ride over the tracks, where in the city, the streets are one height and the tracks are another.

Mayor Kelley stated that the same concern came up before about the tracks and staff was suppose to bring back a report because CSX was backed up. He suggested that the City Manager follow-up because the bottom line is that the railroad tracks needs to be addressed.

Mayor Kelley asked, how did the city come up with the $30,000.00 amount reflected in the resolution?

Manager Patterson explained that FDOT has other such contracts with other cities and they are applying the same as with other cities in Miami-Dade and Broward counties per the square footage involved.

Of concern to Mayor Kelley was the fact that in some cities that number is different and in some cases not as high; but perhaps their agreements are different.

Manager Patterson advised that FDOT came up with the $30,000.00 based on the formula used with other municipalities.

Mayor Kelley asked, was that amount compared to other than what they just provided? If so, what was it compared to?

Manager Patterson replied, Pembroke Park.

Mayor Kelley expressed his opinion in terms of doing the maintenance of the property in house with the Urban Rangers and/or inmate workforce.

Commissioner Johnson agreed that the maintenance should be done in house and not having it go out to a contractor.

Manager Patterson stated that the biggest problem would be the first time around.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes

Vice Mayor Taylor	Yes
Mayor Kelley	Yes

3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO A CONTRACT WITH CBHC, LLC FOR THE CONSTRUCTION OF SHERBONDY VILLAGE – COMMUNITY CENTER; PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the above resolution.

Manager Patterson explained that the city has negotiated the price reflected in the resolution and he had subsequently learned that this Commission passed an ordinance requiring all city buildings to go green. However, this building is not a "green" building but a normal building that the contractor would build. He recommended that the Commission approve the resolution to get the building started and allow him to go back to the contractor to see about getting at least a certified "green" building.

Of concern to Commissioner Johnson was the fact that the contractor when making their presentation before the Commission weighed very heavily on a "green" project and the city must hold them to it.

Vice Mayor Taylor stated that the final bid of 3.7 Million Dollars included a "green" building and the representative stood before the Commission and said this would be a "green" certified building. Now something has been switched and "green" has been switched with something else and she wants to know what happened.

Because a representative from CBHC, LLC was present at the meeting, Mayor Kelley asked, would it be out of order to ask him to come up and answer the question from Vice Mayor.

Attorney Geller advised that it would not be out of order. He added that his understanding is that the 3.76 Million Dollars was including green and there was concern about the dollars available; the 3.4 which is $360,000.00 less does not include a green building. The City Manager believes based on discussions that there can be additional dollars found and a negotiation that would still result in a price substantially below the 3.76 Million Dollars and green.

Mayor Kelley asked for the will of the Commission to allow Mr. Taylor of CBHC, LLC to come forward. The majority members of the Commission agreed to allow Mr. Taylor to address the concern.

Michael Taylor, CBHC, LLC, came forward and explained that in their proposal they stood before the Commission and stated they would deliver a green building for the 3.76 Million Dollars. In working with staff there was a concern in terms of the overall budget

of the project and they got down to a number of 3,425,000.00 which is the number reflected in the resolution which takes the green out.

Vice Mayor Taylor asked if the 3.76 Million was for both phases.

Attorney Geller advised that it was for Phase 1a and Phase 1b.

Of concern to Vice Mayor Taylor was the fact that if the contractor doesn't do green in the beginning then they can't do green in the middle or end because it has to be from the beginning. She said she didn't know about the negotiations after but this company stood before this Commission and said they would deliver a green building for 3.76 Million Dollars.

Vice Mayor Taylor asked, why is the city trying to save money?

Manager Patterson advised that the city didn't have enough money to do both of the projects now and he was looking for additional dollars to complete part II at a later date. He learned from staff that green was not a part of the RFP requirements.

Vice Mayor Taylor asked, why did staff negotiate the price down?

Manager Patterson stated that it was to give the city a building that was not green because green was not required in the RFP.

Vice Mayor Taylor stated that she could not support the resolution as is because the city is in need of a green building. Therefore, she would like for it to go back to what the Commission originally voted on when the company made their presentation.

Commissioner Holmes suggested that the city continue with the 3.7 Million Dollar "green" building.

Attorney Geller stated that if the direction from the Commission is "green" then he would get the best price that is higher than 3.4 Million but less than 3.7 Million.

Commissioner Holmes recommended that the Commission get a "green" building if they can get it for less than 3.7 Million Dollars.

Because the correspondence didn't support what the City Attorney just stated, Commissioner Johnson asked Mr. Taylor to show here where she would be able to find that language in the documentation.

Mr. Taylor advised the Commission that he had submitted proposals to Dr. Orji (a copy was provided to the City Manager) for a LEED certified building and a Silver Certified Building which is for two separate numbers.

Commissioner Johnson expressed her concerns about the 3.4 Million Dollar in the resolution which doesn't include a green certified building and their original vote on the 3.7 Million Dollar which included the certification and somehow is has now been taken out. She didn't understand how the "green" was taken out of the building when the

Commission had already voted for it. Prior to Mr. Patterson coming to the city, the Commission had voted in 2007 that all buildings would be green.

Mayor Kelley stated that should the Commission want to move forward with the resolution then a couple of amendments would have to be made to the resolution. Since the Commission wanted to move forth with this item, he directed the City Attorney to provide the verbiage for the amendment to the resolution.

Following brief discussion, Mr. Taylor suggested that the Commission go back to the original proposal in which the contractor would deliver a Silver Certified Building as proposed in the presentation for 3.76 Million Dollars.

Mayor Kelley asked, does the city have the 3.7 Million Dollars for this project?

Manager Patterson replied, not yet.

Mayor Kelley said that the City Manager keeps saying that the city does have that money and he can recall they only have 3.2 Million Dollars for this project. Any amount over that the city would have to find additional dollars, therefore, they are not saving any money.

Although the city didn't have the 3.7 Million Dollars, Commissioner Johnson mentioned other methods to seek the additional dollars. However, the Commission must move forward with getting a green building.

Attorney Geller advised that the contract itself would be changed; however, the Commission can go with the following language on the resolution:

4th Whereas: The financial obligation of the contract is $3,760,000.00 for which price the contractor will deliver a LEED Silver Certified Building.

Section 2. The City Commission of the City of Opa-locka, Florida, directs and authorizes the City Manager to enter into a contract with CBHC, LLC, for the construction of Sherbondy Village – Community Center, in a form acceptable to the City Attorney, to provide a LEED Silver Certified Building on the terms set forth above.

Commissioner Holmes asked Mr. Taylor if he was in agreement with what the City Attorney just stated.

Mr. Taylor replied, yes.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to amend the resolution to included the language above as stated by the City Attorney.

Mayor Kelley stated that he was oppose to the high price and his is still not comfortable with the price but he will support this only because the Commission is going with the LEED Silver Certified Building. He expressed his frustration with the green requirement not being included in the RFP to begin with.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

There being no further discussion, the original motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

12. NEW ITEMS:

13. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

14. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, REVISING CHAPTER 11, ARTICLE 1, SECTION 11-1, "DEFINITIONS", OF THE CITY OF OPA-LOCKA CODE OF ORDINANCES; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

B. SECOND READING/PUBLIC HEARING:

C. RESOLUTION(S):

15. ADMINISTRATION:

CONSENT AGENDA:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ACCEPT THE SAFE NEIGHBORHOOD PARK (SNP) BOND PROGRAM GRANT IN THE AMOUNT OF TWO HUNDRED AND NINETY-THREE THOUSAND FOUR HUNDRED DOLLARS ($293,400.00) FOR SHERBONDY PARK RENOVATIONS PHASE II; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above consent agenda item was read by title by Attorney Geller.

It was moved by Vice Mayor Taylor, seconded by Commissioner Holmes to pass the consent agenda.

The motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Out of Room
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

A. CITY MANAGER'S REPORT:

Manager Patterson reported that on March 17, 2010, the city received the job access reverse commute for implementation of the bus shelter grant from the South Florida Transportation Authority. Additionally, the Opa-locka Police Department has participated in the Cancer Society Relay for Life which has to be approved by the City Commission.

Detective Hill of the Opa-locka Police Department came forward and stated that as the sponsor and team captain representing the Opa-locka Police Department for the American Cancer Society Relay for Life. She provided an overview of the event as well as the importance of coming together to raise the money necessary to eliminate cancer. She further urged everyone to join the team in this fight against cancer.

Mayor Kelley advised that the Commission will make sure to adopt a resolution for this event which is in April. Hopefully, the City Manager can get all the departments involved as well.

Commissioner Holmes expressed his concerns relating to several complaints from citizens relating to the maintenance of NW 139th Street between NW 23 and NW 26 Avenues and the issuance of citations by the Opa-locka Police Department in the 1800 block of Rutland Street.

He directed the City Manager to address these concerns by sweeping the street and cutting the trees on NW 139th Street and working out a way to reduce the issuance of parking citations on Rutland due to the lack of parking in that area.

In speaking with OCED, Commissioner Johnson said she was told the city would be receiving about $500,000.00 for the Helen L. Miller Center and because that facility is an unsafe structure, she directed the City Manager to find $200,000.00 additional funds to demolish that facility and build a new one. She suggested that the City Manager fast forward this item and bring it back to the Commission.

She continued by saying that the Commission previously discussed bringing the city's building into ADA compliance and she hadn't heard the City Manager address this issue in his report. However, the city's main building must be in ADA compliance and the City Manager should work with the City Attorney to fast forward this issue.

She requested that the City Manager provide her with the status of her Welcome Kit which she would like to have available by June 2010.

She further stated that she would like to be the first to take the drug test.

Commissioner Johnson directed the City Manager to fast forward the Hurricane Preparedness Plan and look into having the schools / churches as site(s) for emergencies. In addition to that, she directed the City Manager to move forward with the completion of the Employee Memorial Garden.

Commissioner Holmes provided the City Manager with information on the 841 Battalion Project which provides demolishing services free of charge. He suggested that the City Manager have staff make contact for future purposes.

Vice Mayor Taylor asked for an update on the Ali-baba Avenue Roadway Improvement Project?

Manager Patterson advised that the project was going back out for bid.

Since this would be the third time that project has gone out for bid, Vice Mayor Taylor asked, why is it going out again instead of going with the one person that submitted their proposal the last time?

Manager Patterson explained that the last time this project went out for, the only proposal received was somewhere in the ballpark with the original three bids submitted with the first bid. The city will shorten the scope of work and put the RFP back out because the previous bids were over the amount of money in the program. He said the RFP has gone out again.

Vice Mayor Taylor expressed her concern about the track of land South of NW 135th Street and the connector near the fence for the Print Offset company which never gets cut in the back. She directed the City Manager to make sure this property is maintained on a regular basis.

She asked if the city was on schedule with the demolition of the old water plant?

Manager Patterson replied, yes.

Vice Mayor Taylor asked whether the Gold Course Property on the connector and the land next to the Cultural Arts Center a part of the proposed CRA.

Manager Patterson replied, yes.

Vice Mayor Taylor directed the City Manager to get with Choice Environmental Services about sending out bulk trash pickup information different from the first because of the changes to the schedule.

She continued by saying that having a park in the Nile Garden area is a passion of hers and asked if the city has got any further identifying any property in Nile Gardens.

Manager Patterson replied, no.

Vice Mayor Taylor informed the City Manager that she requested a grant update but she didn't see the information in the booklet provided.

Commissioner Johnson advised that the information was in the booklet and attempted to point it out to Vice Mayor Taylor.

Several months ago, Commissioner Tydus stated that the Commission adopted a resolution to begin the search process for an in house attorney. She asked if the City Manager was aware of that and had the process began?

Manager Patterson recalled there being discussion about an in house attorney during the conversation relating to the current City Attorney's compensation.

Commissioner Tydus directed the City Manager to get a copy of the resolution from the City Clerk's Office to begin the process.

She continued by asking the City Manager if he had the opportunity to get with Miami-Dade County about getting assistance to address the stray dogs situation in Opa-locka.

Manager Patterson replied, no.

In terms of the garbage and trash pickup, Mayor Kelley stated that he had citizens with challenges because the dates were changed. He suggested that the City Manager do a PSA on the city's cable channel, send out another letter, find other methods to educate and get the word out perhaps by having Code Enforcement reminding those individuals who have the trash out on the wrong day instead of fining them.

With regards to the Ali-baba Roadway Improvement Project going out for the third time, he said that one of the challenges is the scope of work put into the RFP. In moving

forward, it would help the city if staff would look at the scope more closely before sending the RFP out to make sure it's more realistic in terms of the expectation of price.

After hearing the Helen L. Miller getting funding, he asked if the City Manager had just found out that information.

Manager Patterson advised that he found out about the funding the previous week.

Mayor Kelley said he was hoping when the funding came in conjunction with the work that is being done already; therefore, he would hope the City Manager would come back to the Commission with his recommendation to fast track that project.

He continued by thanking the City Manager for the report on the Garden Apartments but there have been too many incidents in that particular area of the city which must be addressed before it gets any worse and out of control. He said he would look for the implementation of what has been agreed upon.

He further directed the City Manager to provide the Commission with a report on the FRDAP grant for the Ingram Park Lakefront.

Commissioner Johnson recalled the City Manager saying the RFP for the Ali-baba Roadway Improvement Project had gone out?

Manager Patterson said that is correct. He added that the scope of work had been reduced.

Commissioner Johnson asked the City Clerk when did she send out that notice for an RFP?

Clerk Irby advised that she had not sent out a notice for an RFP for the Ali-baba Roadway Improvement Project.

Commissioner Johnson suggested that when putting information on the record, it should be clear and concise.

Mayor Kelley stated to the City Manager that the question is, was the city going to put the RFP out or it has gone out?

Manager Patterson explained that he directed the RFP to go out but he doesn't know if it actually went out yet.

B. ACCOUNTS PAYABLE:

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and stated that the city is paying all its bills as they are submitted and approved. Additionally, all the financial reports are included in the packet provided to the Commission.

Mayor Kelley asked for an update on the audit.

Dr. Orji advised that the audit is progressing and the due date is March 31, 2010.

Commissioner Johnson asked, when is the Commission scheduled to come back mid year to review where the city is in terms of the budget?

Dr. Orji stated that it would probably be at the first meeting in April 2010.

Commissioner Johnson suggested that the information is prepared and provided to the Commission prior to and not at the last minute in order to allow time for review.

16. OFFICIAL BOARD REPORTS:

1. John Riley, Chairman
City of Opa-locka Charter Review Board

John Riley, Chairman of the City of Opa-locka Charter Review Board came forward and stated that the Commission should have in their packet a number of recommendations from the Charter Review Board. The process would call for the Commission to hold a public hearing and after which the Board would hope that they would consider whether or not they would be placed on the ballot.

As Chairman of the Housing Authority, he urged the Commission to fill the vacancies for that board in order to have a quorum. The only way the city will get the Garden Apartments squared away is to have a resident manager living on that property who is responsible.

He further spoke in terms of the improvement of the Opa-locka Police Department.

Charles Calaman, Legislative Assistant to Senator Frederica Wilson, came forward and provided the Commission with a copy of the listing of 200 Free Scholarships for Minorities 2010. In addition he spoke about the importance of Census 2010 and the population that doesn't get counted very well relating to members that are living somewhere else.

17. CITY ATTORNEY'S REPORT:

Attorney Geller provided an update on the red light program; the school seeking to locate in the City of Opa-locka and the drafting of an ordinance which would give the Commission the discretion to allow good projects but deny bad ones; and the affordable housing project by Georgia Ayers discussed under Citizens' Forum.

He continued by saying he had conversations with the City Manager pursuant to a request by Commissioner Holmes in terms of insurance benefits and possibly deferred compensation.

He further reported on two cases relating to the Flea Market in which they sued the city years ago related to the closing and the other where the city has gone after them for monies owed. The Flea Market has agreed to mediate but before that is scheduled he

would request an Executive Session for guidance from the Commission as to what they think is appropriate.

Attorney Geller advised he reported a couple of meetings ago that he was told the city may be sued by Alfonza Tate in regards to his termination some years ago. He indicated to Mr. Tate's attorney that the city didn't believe there was merit to it. The city recently received papers to sue the city in which he would respond accordingly and brief the Commission more thoroughly on this issue also at a future Executive Session.

He stated that he'd been working with the City Manager and staff in response to if there's a problem particularly with a plane inadvertently landing in the city and the City Manager is pursuing an agreement to obtain their fire suppression equipment.

Finally, he reported that the city remains committed to getting something done as quickly as possible with PBA. The City Manager had staff develop some numbers which are being reviewed; this is an overall budget question in terms of where dollars are spent.

Vice Mayor Taylor recalled asking the City Attorney at the last commission meeting for a written report as to the pending cases.

Attorney Geller explained that he was planning on providing the monthly report during the first of each month.

Vice Mayor Taylor asked that the City Attorney provide a written report from December when he was appointed as Interim City Attorney up until now and then thereafter he could provide his monthly reports.

Commissioner Johnson advised the City Attorney that the CRA needed corrective action and suggested that the city not allow it to linger on like the EAR. The City Commission will need a resolution or ordinance to move the CRA plan if that's what they decide; therefore, the City Attorney should stay on top of this issue. Secondly, she'd asked a couple of times how many banking institution the city had accounts in but she hasn't received that information. In reading correspondence, the city may have a currency decrease. She directed the City Attorney to follow up and make sure there is language in the city's banking institutions to protect the dollar value. Lastly, she said she is concerned about staff blindsiding the Commission with other promises relating to the allegations from the individuals who spoke about the Labor Workforce Program; therefore, she directed the City Attorney to bring forth legislation so that it could not be done without their awareness.

With regards to the Women's History Luncheon, Mayor Kelley said he wants to recognize all the women employees of the city but he was told by employees that they couldn't attend the luncheon because they would be penalized or written up. He clarified that the City Manager has the authority to allow women employees to attend the luncheon during their lunch break because he runs day to day.

Attorney Geller replied, yes, sir.

Mayor Kelley directed the City Manager to allow those women employees to attend the luncheon if possible, if doesn't interfere with the office.

18. CITY CLERK'S REPORT:

Commissioner Johnson asked for a clarification on the Census 2010 and those individuals who are in prison.

Clerk Irby said she would provide the Commission with the information the following day. She advised the City Commission that she would be receiving materials for the census and she would like to schedule a motorcade throughout the city.

In speaking to one of the regional directors for the Census, Commissioner Johnson said that Mrs. Tang emphasized that because of the outstanding work done by the City Clerk is the reason why the city will receive the additional promotional items for the census.

19. MAYOR/COMMISSION REPORT:

Commissioner Johnson reported that she is working with the school district on some issues because the concerns are the condition of the two schools in Opa-locka and the aging of the schools. She thanked the City Clerk and Mayor for attending the Family Night Out event with Jo Marie Payton and Barrington Irving. In addition to that, she said she is working to start the Average Breakers Club for the youth and more information would be forthcoming.

She continued by saying that she is working with Miami-Dade County Teen Court for a presentation on May 11, 2010. She has since met with the Miami-Heat to add to the employee discount list for tickets.

She further reported that CAA had extended their deadline for summer meal applications.

Vice Mayor Taylor reported that she is working on the 100 homeowners to take advantage of the beautification program from the CAA. She thanked the Opa-locka Police Department and all city departments for their hard work and dedication to make life better for the residents in the City of Opa-locka.

She further stated that Dorothy Height is the next chairman after Mary McCloud Bethune for the National Council of Negro Women. Since March was Women's History Month in honor of Mrs. Height's birthday she prepared a proclamation in her 98th Birthday to be sent to her from the "great" City of Opa-locka.

Commissioner Holmes suggested that the City Manager and staff continue to do a great job for the community.

Mayor Kelley reported traveling to Washington, D.C. along with the City Manager to fight for dollars for the City of Opa-locka. In addition to that, he attended a workshop that focused on Public Safety and heard from the Department of HUD about funding for existing programs. He met with Senator Nelson and Congressman Meek's staff relating to funding for those infrastructure issues.

He provided the City Manager with information regarding a show case video program which is at no cost to the city allowing for a link through the League of Cities that would actually do an innovative program to showcase and educate viewers not only in Opa-locka but throughout the country about the "great" City of Opa-locka.

He further stated that there's a program which assists with downtown redevelopment at a lower fee based cost through the League of Cities so the Commission can have a plan to implement in phases. This program is called the American Downtown Program.

Mayor Kelley reported that he met with Commissioner Jordan, the City Manager, Dade Housing and Habitat regarding the properties in Magnolia North and he is hoping to have a town hall setting in mid April to inform the citizens of the process that will take place through NSP dollars.

He continued by providing an overview of the outcome of his meeting with Miami-Dade County School Board regarding to issues concerning the education for youth in Opa-locka.

He further reported having his Faith Based Meeting on Tuesday, March 23, 2010.

Mayor Kelley invited all the women to the Women's History Luncheon on Friday, March 26, 2010 @ 11:30 a.m.

20. OFFICIAL BOARD APPOINTMENTS:

21. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to adjourn the meeting at 10:07 p.m.

MAYOR

ATTEST:

CITY CLERK